Superior Court of California

City and County of San Francisco

Appellate Division

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
10/10/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant.*	No. APP-24-8800 Super. Ct. No. 24000063

Appeal from judgment of conviction
Superior Court of California, City and County of San Francisco
Hon. Braden C. Woods

APPELLANT'S REQUEST FOR JUDICIAL NOTICE

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Pursuant to rule 8.809 of the Rules of Court, Defendant and Appellant Andrew Enriquez requests judicial notice of the exhibit volumes 2–10, lodged in *Kobe Headspeth v. Superior Court*, no. APP-24-8762 ("*Headspeth*"), a writ petition filed in this court. (See Evid. Code, § 452, subd. (d)(1); § 453.)

In his motion, Mr. Enriquez included a note incorporating by reference all exhibits filed in support of the motion to dismiss in *People v. Kelly Waterman*, no. 23015368. (CT 87.) The trial court issued general orders deeming these exhibits to have been filed in all motions which included this note. (See *Headspeth* Exh. W-A, General Order Re: Compact Discs, 2 PE 303; *Headspeth* Exh. W-F, Second General Order Re: Compact Discs, 10 PE 1962.) These exhibits are reproduced in volumes 2–10 lodged in *Headspeth*.

The Court should take judicial notice of exhibit volumes 2–10 lodged in *Headspeth*. Doing so would avoid the need to lodge another identical copy of the nine-volume set of exhibits in this misdemeanor appeal, and would conserve the limited resources of the clerk's office.

Pursuant to rule 8.809 of the Rules of Court, petitioner submits the following information:

(A) Exhibit volumes 2–10 are relevant because they contain the evidentiary record on which petitioner's speedy trial motion relies.

(B) The exhibits were presented to the trial court, and it deemed them filed in this case. (See *Headspeth* 2 PE 303, *Headspeth* 10 PE 1962.)

(C) Exhibit volumes 2–10 are noticeable because they are records of a court of this state, having been filed both in respondent court and in this Court. (See Evid. Code, § 451, subd. (d).)

(D) The exhibits to be noticed were all filed in respondent court before it issued its order denying petitioner's motion.

For these reasons, the Court should take judicial notice of exhibit volumes 2–10 lodged in *Headspeth*.

October 10, 2024

Respectfully submitted,

/s/

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Oliver Kroll

/s/

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Steve Lau